

#	Case Name	Tentative
1	26-01561877 <i>Acrisure, LLC vs. Thomas</i>	Demurrer to Complaint Defendant Patrick Thomas’ demurrer to plaintiffs Acrisure, LLC, Acrisure of California Partner Group, LLC, and RSI Insurance Brokers, Inc.’s Complaint is SUSTAINED with 20 days leave to amend. Third cause of action for intentional interference with prospective economic advantage “An interference with prospective economic advantage cause of action requires (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) the defendant’s intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the defendant’s acts. The plaintiff must also prove that the defendant engaged in an independently wrongful act in disrupting the relationship. In this regard, an act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” (<i>SC Manufactured Homes, Inc. v. Canyon View Estates, Inc.</i> (2007) 148 Cal.App.4th 663, 672 fn. 7 [cleaned up].) Thomas demurs on the ground Plaintiffs do not plead independently wrongful conduct as Plaintiffs allege only that Thomas merely induced at-will employees to leave Acrisure. Plaintiffs allege, however, Thomas did so while still serving as Acrisure’s senior employee and supervisor, which required him to act in Acrisure’s best interests, faithfully discharge his responsibilities, and to refrain from engaging in conduct adverse to the company’s business. (Compl. ¶ 23.) The Court finds this is sufficient to allege independently wrongful conduct. Thomas further alleges Plaintiffs’ cause of action fails as Thomas “was not a stranger to the employment relationships at issue and therefore cannot be held liable under the interference tort.” (Dem. at 4:15-17.) “‘[C]orporate agents and employees acting for or on behalf of the corporation cannot be held liable for inducing a breach of the corporation’s contract,’ unless the corporate agent was acting for his own benefit, rather than the corporation’s benefit.” (<i>Mewawalla v. Middleman</i> (N.D. Cal. 2022) 601 F.Supp.3d 574, 610 [citing various California cases].) Plaintiffs sufficiently allege Thomas acted “for personal financial gain and to advance his future employer’s competitive interests at Acrisure’s expense.” (Compl. ¶ 61.)

		This cause of action also requires, however, “<i>actual</i> disruption of the relationship.” (<i>SC Manufactured Homes, Inc., supra</i>, 148 Cal.App.4th at p. 672 fn. 7 [emphasis added].) Plaintiffs allege Thomas asked one employee whether he would be interested in an opportunity with a competitor and that the employee was subsequently contacted by the competitor. (Compl. ¶ 32.) Plaintiffs further allege another employee received unsolicited calls from a competitor and responded he was not interested in joining. (Compl. ¶ 33.) Plaintiffs allege Thomas then contacted that employee and informed him Thomas was working with the competitor, had been told by the competitor about the employee’s response, and encouraged the employee to consider the competitor’s offer. (Compl. ¶ 33.) Plaintiffs allege the employee then received an offer letter from the competitor. (Compl. ¶ 34.) Finally, Plaintiffs allege “Thomas solicited additional Acrisure employees to join him at the competitor.” (Compl. ¶ 35.) While Plaintiffs include a single allegation they have “suffered substantial and irreparable injury, including the loss of business, employees, and damage to its goodwill and reputation” (Compl. ¶ 39), the alleged loss of employees is unsupported by any factual allegations. Plaintiffs do not allege either the specifically referenced employees or any other employees actually left Acrisure for a competitor due to Thomas’ conduct. The Court SUSTAINS Thomas’ demurrer to the third cause of action in Plaintiffs’ complaint with 20 days leave to amend.
2	25-01453685 <i>Adams vs. Colliers International Group, Inc.</i>	1) Motion to Compel Production 2) Motion to Compel Production Plaintiffs Irene Adams and West Palmyra Ltd. moves to compel Defendant Colliers International Group Inc. (“CIGI”) to serve further responses to Plaintiffs’ Requests for Production of Documents, Set One, and to produce all responsive, non-privileged documents. On 5-21-26, the court continued the hearing on the Motion and ordered the parties to further meet and confer. (ROA 452.) On 6-18-26, parties filed a Joint Statement which shows the parties have met and conferred and CIGI has agreed to produce all non-privileged documents responsive to the Request for Production. To date, CIGI has produced 18,613 documents. CIGI states that it will be producing additional responsive documents on 6-22-26 and will serve supplemental responses to the Request including identifying bates numbers of documents by category by 6-24-26. It appears the parties have successfully resolved the issues raised in the Motion. The court asks that the parties come prepared to discuss the status of the service of supplemental responses and production of supplemental documents and any remaining issues not resolved by the meet and confer. Plaintiffs to give notice.